

	Motion to be Relieved as Counsel CMC	Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Clark v. Clark 2025-01502837 Motion to set aside/vacate	Plaintiff Edward L. Clark, Jr.'s Motion to Vacate Order Issued 5/13/2026 is DENIED. Plaintiff moves pursuant to Code of Civil Procedure, section 473, subdivision (b) to set aside the Court's ruling, issued on 5/13/26, denying Plaintiff's Motion to Stay Proceedings in Related Family Law Matter 05D000275 and Order to Show Cause Regarding Preliminary Injunction. (See ROA 132.) As an initial matter, Defendant's defective notice argument lacks merit and the error was harmless. While the notice of motion lists the wrong address for the courthouse, it states the correct department, C15. Defendant's counsel appeared in person in department C15 on 5/13/26, the day before the instant motion was served. No notice was served indicating this case was transferred to a different department. Further, Defendant waived the notice irregularity by substantively opposing the motion. Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) "Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929). Inadvertence is defined as "lack of heedfulness or attentiveness, inattention, fault from negligence." (<i>Baraili v. Baraui</i> (1952) 109 Cal.App.2d 917.) Inadvertence constitutes grounds for relief "where the circumstances surrounding the inadvertence justify it and the inadvertence is not wholly inexcusable and does not constitute gross negligence." (<i>Ross v San Diego Pipe</i> (1920) 50 Cal.App. 170.) "Surprise" is some condition or situation in which a party to a cause is unexpectedly placed, to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded

against. (*Credit-Managers Assn. v. National Independent Business Alliance* (1984) 162 Cal.App.3d 1166.)

Plaintiff argues the Court created a substantial defect or irregularity in the proceedings due to the inability to produce a transcript because the Court muted the court reporter, who appeared via Zoom, and then disconnected her. According to Plaintiff, this violated his due process rights and his right to an accurate record for an appeal and constitutes mistake, inadvertence, or surprise.

Defendant's counsel points out that before the Court adopted the tentative ruling, Plaintiff argued against it and, after Defendant's counsel argued for the tentative, Plaintiff argued again. Defendant's counsel notes that Judge Oberholzer, presiding, commented that the matter was "not close," which Defendant included in the Notice of Ruling served on Plaintiff. Defendant's counsel notes there was no testimony at the 5/13 hearing; only argument.

The Court finds Plaintiff has not established the Court denied Plaintiff's motion due to his mistake, inadvertence, surprise, or excusable neglect. The Court would have denied the motion regardless of whether the court reporter transcribed the hearing. Plaintiff cites no authority for the proposition that the inability to produce a transcript establishes mistake, inadvertence or surprise under section 473(b).

The Court also finds Plaintiff has not established that the inability to produce a transcript deprived him of a fair hearing or the ability to appeal or violated due process. Plaintiff was provided with the tentative ruling and had two opportunities to argue against it. If the order was appealable, Plaintiff was free to file an appeal with the Court of Appeal. California Rules of Court, rule 8.830 lists various ways to provide the Court of Appeal with the necessary record on appeal.

Relying on "[r]ule 60(b)," Plaintiff contends the court's action constitutes a procedural error that deprives a party of a fair hearing or the ability to appeal. Relying on "[r]ule 60(b)(4)," Plaintiff contends that if the action violates due process or the statutory right to a record, the resulting order may be void. Presumably Plaintiff is referring to California Rules of Court. Former California Rules of Court, rule 60 is now California Rules of Court, rule 8.380. The new rule relates to habeas corpus petitions and does not support the premise for which Plaintiff cites it.

The motion is denied.

8	Morris Cerullo World Evangelism v. G10 Law 2026-01543510 Motion for Change in Venue (Transfer) CMC	The Motion to Transfer Venue by Defendants G10 Law, A Professional Law Corporation, Louis A. Galuppo, and Georgia Z. Schneider is GRANTED. This legal malpractice case arises from the attorney Defendants' handling of an underlying real property lawsuit, Orange County Case No. 21-01227550. Defendants assert venue in San Diego County is proper because all parties reside in San Diego County and the attorney-client relationship was formed and carried out in that County. Legal standard Code of Civil Procedure section 395, subdivision (a) states in part, "Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. [. . .] Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." "The plaintiff's theory of the action as set forth in the complaint determines the venue. Because the law favors the right of trial at the defendant's residence, the complaint will be strictly construed against a plaintiff seeking to lay the venue elsewhere." (<i>Gallin v. Superior Court</i> (1991) 230 Cal.App.3d 541, 544.) However, "the county of a defendant's residence is not a preferred place of trial over the county where the contract is entered into or is to be performed." (<i>Gilman v. Nordin</i> (1952) 112 Cal.App.2d 788, 793 [emphasis in original].) "Section 395 of the Code of Civil Procedure provides that the county in which the contract sued on is made and is